

CHAPTER ONE: PRINCIPLE OF EXECUTORSHIP AND TRUSTEESHIP LAW .

A. Law to make provisions with respect to Wills. (1990 No. 2.) (24th August, 1990)

(Commencement)

1. Power to dispose property by will.

(1) It shall be lawful for everybody to bequeath or dispose by his will executed in accordance with the provision of this law, all property to which he is entitled, either in law or in equity, or at the time of his death-provided that the provisions of this Law shall not apply to any property which the testator had no power to dispose of by will or otherwise under Customary Law to which he was subject.

(2) The power given under this section shall extend to -

- a. All contingent executory or other feature interests in any property, whether the testator may or may not be ascertained as the person of one of the persons in whom the same respectively may become and whether he may be entitled thereto under the instrument by which the same respectively were created or under any disposition thereof by deed or will;

- b. All rights of entry for conditions broken and other rights of entry; and
- c. Such property to which the testator may entitled that the time of his death, notwithstanding that he may become entitled to the same subsequent to the execution of his will.

2. Provision for family and dependants.

(1) Notwithstanding the provisions of section this Law where a person dies and is survived by any of the following persons-

(a) The wife or wives or husband of the deceased; and

(b) A child or children of the deceased that person or those persons may apply to the court for an order on the ground that disposition of the deceased estate affected by his will is not such to take reasonable financial provisions for the applicant.

(2) The this section "reasonable financial provision" in the case of an application made by virtue of subsection (1) (a) of this section by the husband or wife or wives of

the deceased (except were the marriage with the deceased was subject) of a decree of judicial separation in accordance with any Customary Law and at the date of the death the decree was in force and the separation was continuing, means such financial provision as, it would be reasonable in all the circumstances of the case for husband or wife or wives receive, whether or not that provision is required for his or her maintenance.

(3) An application under this section shall be exercisable only within a period of six months from the grant of the probate.

3. Will of person under age invalid.

Subject to section 6 of this Law no will made by any person under the age of eighteen years shall be valid.

4. Requirement for the execution at a will.

No will shall be valid unless-

- a. it is in writing
- b. it is signed by the testator or signed in his name by some other person in his presence and made by his direction, in sixth place on the will so that it is apparent on the face of the will that the testator intended to give effect by the signature to the writing signed as his will;
- c. the testator makes or acknowledge the signature in the presence of that least two witnesses present at the same time;
- d. the witnesses attest and subscribe the will in the presence of the testator but not form of attestation or publication shall be necessary.

(2) No signature under this section or under any other provision of this Law shall be operative to give effect to any disposition or direction which is underneath or follows it nor shall it give effect on any disposition or direction inserted after the signature shall be made.

5. Execution of appointment by will.

No appointment made by will in exercise of any power shall be valid unless the same be executed in the manner hereinbefore required and every will executed in such a manner shall, so far as respect the execution and attestation thereof, be a valid execution of a power of appointment by will notwithstanding it shall be have

been exercise expressly required that will be made in exercise of such power should be executed with some additional or other form of execution or solemnity.

6. Provision as to wills of seamen, mariners and crew of commercial airlines.

(1) Notwithstanding the foregoing provisions of this Law any sea man, or mariner (not being a member of the Nigeria Navy or crew of commercial airline being at sea or in the air may dispose of his estate though under the age of eighteen years.

(2) A testamentary disposition made by a person to whom the preceding subsection applies shall, notwithstanding that such disposition has not been made in compliance with the formalities prescribed under the provisions of this Law, be valid if the court is satisfied that the instrument expresses the testamentary intention of the testator.

7. Will not void because of incompetence of attestation witness.

If any person who shall attest the execution of a will shall at the time of the execution thereof not at any time afterwards be incompetent to be admitted a witness to prove the execution thereof such will shall not on the that account be invalid.

8. Gifts to attesting witness or wife or husband of attesting witness void.

If a person shall attest the execution of any will to whom or to whose wife or husband any beneficial legacy, interest, gift or appointment of or affecting any property (other than and except charges and directions for payment of any debt or debts) shall be thereby given or made such legacy estate, interest, gift or appointment shall, so far as only concerns person attesting the execution of such will or the wife or husband of such person or any person claiming under such person or wife or husband, be utterly null and void, and such person so attesting shall be admitted as a witness to prove the execution of such will or to prove the validity of invalidity thereof, notwithstanding such legacy, estate, interest or gift or appointment mentioned in such will:

Provided that the attestation or a will by a person to whom or whose spouse is given or made any such disposition as is described in this section shall be disregarded if the will is duly executed without his attestation and without that of any other such person.

9. **Creditor attesting a will charging estate with debt.**

In case by any will any property shall be charged with any debt or debts and any creditor, or the wife or the husband of any creditor whose debt is so charged shall attest the execution of such will, such creditor notwithstanding such charged shall be admitted a witness to prove the validity or invalidity thereof.

10. **Executor to be admitted a witness.**

No person shall on account of his being an executor of a will, be incompetent to be admitted a witness to prove the execution of such will or a witness to prove the validity or invalidity thereof.

11. **Wills revoked by marriage.**

Every will made by a man or a woman shall be revoked by his or her marriage (other than a marriage in accordance with Customary Law) except -

- a. a will made in exercise of a power of appointment which the property thereby appointed would not default of such appointment pass to his or her heir, executor or administrator or the person entitled as his or her next of kin any written law relating to the distribution of the estate of person dying intestate;
- b. a will express to be made in contemplation of the celebrating of that marriage:

Provided that the names of the parties to the marriage contemplated are clearly stated.

12. **No Revocation by presumption from altered circumstance.**

No will shall be revoked by any presumption of an intention on the ground of an alteration in circumstances.

13. **In what cases wills may be revoked.**

No will or codicil, or any part thereof, shall be revoked otherwise than as provided by section 11, or by another will or codicil executed in a manner hereinbefore required or by some writing declaration and intention to revoke the same, and executed in the manner in which a will is hereinbefore required to be executed, or by the burning, tearing or otherwise destroying the same by the testator or by some person in his presence by his direction with the intention of revoking the same.

14. Alteration in will after execution.

No obligation, interlineation, or alteration made in any will after the execution thereof shall be valid or have any effect except in so far as the words or effect, of the will before such shall not be apparent, unless such alteration shall be executed in the like manner as is herein before required for the execution of the will:

Provided that the will, with such alteration as part thereof, shall be deemed to be duly executed if the signature of the testator and the subscription of the witness be made in the margin or on some other part of the will opposite or near to such alteration or at the foot or end of or opposite to a memorandum referring to such alteration and written at the end or some other part of the will.

15. Revival of revoked will.

No will or codicil, or any part thereof, which shall be in any manner revoked shall be revived otherwise than by the re-execution thereof, or by a codicil executed in a manner hereinbefore required, and showing an intention to revive the same and will or codicil which shall be partly revoked and after wholly revoked, shall be revived such revival shall not extend to so hereof as shall have been revoked before the revocation of the whole thereof, unless an intention to the contrary be shown.

16. Effect of subsequent disposition.

No disposition or other act made or done subsequently to the execution of a will of or relating to any property mentioned in the will except an act by which will shall be revoked as aforesaid, shall or prevent the operation of the will with respect to estate or interest in the property as the testator had power to dispose of by the time of his death.

B. VALIDITY OF WILL

1. The burden, for the proof of validity of a document (Will), the genuineness or authenticity thereof lies on the person propounding it and once this is satisfied, the burden is cast upon those attacking it: see *Ila v. Dadzie* (2000) 4 NWLR pt. 652 page 168. (p. 88)

2. For a will or testamentary intention of a deceased person which ought to be respected, to be given effect to, there must be absolute compliance with the

requirements of the Wills law. The provisions of the Wills Law, as in all laws, where they are clear and unambiguous, must be given their ordinary and literal meaning: See Attorney General of the Federation v. The Guardian Newspaper (1999) 1 NWLR (part 618) at 187 in the case aforesaid, Igulu, JSC had this to say:

"And where the words used or the provisions of any section of the law are clear and unambiguous, they must be given their ordinary meaning unless of course, this would lead to absurdity or be in conflict with other provisions of the law." (pp. 88 - 89)

The Supreme Court of Nigeria page 74 ratio 3 held that:

3. Exhibit TDI under consideration fell short of the mandatory minimum of two (2) required subscribing witnesses as required by section 4(1) of the Wills Law Cap 194 Laws of Lagos State 2003. This short fall of subscribing witnesses was also confirmed by the testimony of the defendant, now appellant herein at the trial that the Will was neither signed by the testator nor executed by the attesting witnesses. (p. 89).
4. Based on the above reasons, the Supreme Court agree completely with the argument of the learned Counsel for respondents and rely on section 4(1) (b) of the Wills Law of Lagos State and Okelola vs Boyle Supra in coming to the conclusion that the said will is invalid for want of due execution. (p. 89).
5. Issue No. 1 is therefore answered in the negative and in favour of the respondents. (p.89).
6. The Supreme Court have perused the arguments of the respective counsel on this issue relating to payment of the statutory fees. (p.91).
7. The Supreme Court have also perused the record of appeal and observed that the Statement of Claim was filed on 9th December, 1993 and the payment of sums of money and its endorsement are indicated thereon. (p.91).
8. That being the case, the Supreme Court agree with the learned respondents' counsel submissions that appropriate filing fees were paid for the processes. Granted without conceding that the amount paid was lower than what was required, the appropriate order is for respondents to make up the balance of

filing fees which unfortunately learned counsel for appellant has failed to state. (p. 91)

9. In conclusion, having resolved all the issues against appellant and in favour of the respondents, The Supreme Court hold that the appeal lacks merit. (p.91).
M.d. Muhammad. J.S.C. says;

1. An overriding condition for the validity of a Will is that it must be completely free from any suspicion or suspicious circumstances whatsoever and the court, unless the suspicion or suspicious circumstances is removed, will pronounce against it and refuse probate. See *Madam Olufunso Okejola v. Miss Adebisi Boyle* (1998) LPELR-2439 (SC). It is for the purpose of eliminating such suspicion or suspicious circumstance from the Will that the Wills Law of Lagos State Cap W2, Laws of Lagos State provides that a Will shall only be valid if:

- (a) It is in writing;
 - (b) It is signed by the testator or signed in his name by some other person in his presence and by his direction in such a place on the Will so that it is apparent on the face of the Will that the testator intended to give effect by the signature of the writing signed as his Will;
 - (c) The testator makes or acknowledges the signature in the presence of at least two witnesses present at the same time;
 - (d) The witnesses attest and subscribe the Will in the presence of the testator but no form of attestation or publication shall be necessary.” (p.92)
2. The evidence on record shows clearly that the witnesses to exhibit TD1, the Will in contention, did not attest and subscribe to the Will in the manner provided for in the forgoing statute it cannot, contrary to what the appellant asserts, be said to be valid. (p.92).

K.B. Akelahs, J.S.C says:

- a. It is not in doubt that the Will (Exhibit TD1) on which the appellant asked her claim to exclusive ownership of the property was faulty because section 4(c) Wills Law of Lagos State Cap W2 Laws of Lagos State which requires that the testator makes or acknowledges the signature in the presence of at least two witnesses present at the same time was not fulfilled. (p. 93)

b. Since this was not done, the trial court nullified the Will and the property in dispute could no longer be held exclusively by the appellant. The Court of Appeal rightly affirmed the decision of the trial court. There is no reason why this Court should tamper with the judgment. (p.94)

J.I. Okoro, J.S.C observed:

1. In my opinion, the main issue in this appeal is "whether in the light of section 4, Wills Law of Lagos State, the will of Madam Adeline O. was valid. (p.94).
2. Section 4 of the Wills Law of Lagos State Cap W2 Laws of Lagos State of Nigeria provides as follows:

"No Will shall be valid unless:

(a) it is in writing

(b) it is signed by the testator or signed in his name by some other person in his presence and by his direction in such a place on the Will so that it is apparent on the face of the Will that the testator intended to give effect by the signature of the writing signed as his Will;

(c) the testator makes or acknowledges the signature in the presence of at least two witnesses present at the same time.

(d) the witnesses attest and subscribe the Will in the presence of the testator but no form of attestation or publication shall be necessary". (pp. 94-95).
3. Evidence on record indicate that the Will of Madam Adeline O. tendered in evidence was not in compliance with the above provision of the Law in that it was not subscribed to by witnesses as provided by the law. It is the law that where the words used or the provisions of any section of the law are clear and unambiguous, they must be given their ordinary meaning unless of course, this would lead to absurdity or be in conflict with other provisions of the law. See Attorney General of the Federation v. The Guardian Newspaper (1991) NWLR (Pt. 618) 187. (p. 95)
4. The Supreme Court agrees with the submission of the Respondents that the Will, exhibit TDI is short of the requirements of the law. It is trite that for a Will or the last testament of the deceased person to be given effect to, there must be absolute compliance with the Wills Law. Exhibit TTD 1 relied upon by the Appellant is not

in absolute compliance with the Wills Law of Lagos State and therefore invalid. (p. 95)

5. This appeal lacks merit and ought to be dismissed. (p.95)

A. Sanusi, J.S.C. also held;

The WILL in question i.e. exhibit TDI which is the main thrust of the claim did not meet the condition of a valid subsisting and enforceable Will as provided or specified in Section 4 of Wills Law of Lagos State, Cap W2, Laws of Lagos State of Nigeria. One of the conditions which must be met before a WILL becomes valid and enforceable is that, the testator must make or acknowledge the signature in the presence of at least two witnesses present at the same time. That vital condition, I am afraid, was not complied with in Exhibit TDI i.e. (the WILL) in question. The failure to comply with such vital condition had therefore seriously affected the validity of the WILL, as rightly held by the trial court and later affirmed by the court below. That being the position as revealed by the evidence adduced in the case makes the judgments of the two courts unassailable and flawless. (p.96) on who bears the burden proof of validity of a Will.

C.1. Wills to speak from death of testator.

Every will shall be construed, with reference to the property comprised in it, to speak and take effect as if it had been executed immediately before the death of the testator unless a contrary intention shall appear by the will.

2. Residuary disposition to include lapsed or void dispositions.

Unless a contrary intention shall be appear by the will any property comprised or intended to be comprised, in any disposition in such will contained, which shall fail or be void by reason of the legatee in the lifetime of the testator or by reason of such disposition being contrary law or otherwise incapable of taking effect, shall be included in the residuary disposition (if any) contained in such will.

3. General disposition of land to mean right of occupancy.

A disposition of the testator, or of the land of the testator in any place or in the occupation of any person mentioned in his will, or otherwise describe in a general manner and which any other general disposition which would describe a right of occupancy if the testator had no free hold estate which could be described by it, shall

be construed to mean the right of occupancy of the testator to which such description shall extend.

4. General gift to include property under general power of appointment.

A bequest of property described in general manner shall be construed to include any property in respect of which he may have a power of appointment and such bequest shall operate as an execution of such power of appointment unless a contrary intention shall appear by will.

5. The word "die without issue" or "without leaving issue" etc. to be construed.

In any disposition of property the words "die without issue" or "die without leaving issue" or "have no issue" or any other word which may import either a want or failure of his issue, shall be construed to mean a want or failure of issue in lifetime or at the time of the death of such person and not indefinite failure of the issue, unless a contrary intension shall appear by the will.

6. Disposition of property to trustee or Executor.

Where any property shall be disposed of to any trustee or executor such disposition shall be construed to pass the whole interest which the testator had power to dispose of any will in such property unless a contrary intention shall appear.

7. Gift to Children leaves issue living at testator's death.

Where any person being a child or other issue of the testator for whose benefit a disposition shall be made for any interest not terminable at or before the death of such person, shall die at the life time of the testator leaving issue and such issue of such person shall be living at the time immediately after the death of the testator, the deposition shall not lapse but takes effect as if the death of such person had happen immediately after the death of the testator unless a contrary intention shall appear by the will.

8. Order 37 of the High Court Rules of Adamawa State 2013

Deal with the administration of property;

Administration of Property

Administration Summon

Rule 37. Any person claiming to be a creditor or legatee or the next of kin or one of the next of kin of a deceased, may apply for and obtain a summons from the Court, requiring the executor or administrator (as the case may be), of the deceased to attend Court and show cause why an order for the administration of the property of the deceased should not be made.

Order for administration

Rule 38. (1) On proof of service of the summons or on appearance of the executor or administrator, and on proof of all such other things (if any) as the Court may direct, the Court may, if it deems fit, make an order for the administration of the property of the deceased.

(2) The Court shall have discretionary power to make or refuse any such order or to give any special directions in respect of the carriage or execution of it and in the case of applications for such an order by two or more different persons or classes of persons, to grant the same to such one or more of the plaintiffs or classes of plaintiffs as the Court deems fit.

(3) If the Court deems fit the carriage of the order may subsequently be given to such person and on such terms as the Court may direct.

Order relating to property

Rule 39. On making such an order or at any time afterwards the Court may, if it deems fit make any further or other order which may appear requisite to secure the proper collection, recovery for safe-keeping, and disposal of the property or any part thereof.

Grant of administration to officer

Rule 40. In a case of intestacy, where the special circumstances of the case appear to the Court to require, the Court may if it deems fit on the application of any person having interest in the estate of the deceased or its own motion grant Letters of Administration to an office of the Court, to a Consular Officer or to a person in the Service of the Government.

Officer to act under the direction of court

Rule 41. (1) The officer or person so appointed shall act under the direction of the court and shall be indemnified thereby.

(2) The Court shall require and compel him to file in the Court his accounts the administration at intervals not exceeding 3 months.

Appointment of person as Administrator by Court

Rule 42. Where a person has died intestate as to his personal estate or leaving a Will affecting personal estate, but without having appointed an executor thereof willing and competent to take probate or where the executor shall, at the time of the death of such person, be resident out of the jurisdiction and it shall appear to the Court to be necessary or convenient in any such cases to appoint some person as administrator of the estate of the deceased or of any part thereof, the Court may appoint such person as it shall deem fit to be such administrator upon his giving such security, if any as the Court shall direct and every such administration may be limited as the Court shall deem fit.

Remuneration of Administrator

Rule 43. The Court may direct that any Administrator (with or without the Administrator will annexed) shall receive out of the personal and real estate of the deceased such reasonable remuneration as the Court shall deem fit not exceeding 10% on the amount of the realized property or when not converted into money, on the value of the property duly administered and accounted for him: Provided that where the Court shall be satisfied that by reason of exceptional circumstances the administration of the property has required an extraordinary amount of labour to be bestowed on it, the Court may allow in respect of such property a higher rate of remuneration.

Securing and collection of estate

Rule 44. Where any citizen of any foreign country dies within the jurisdiction without leaving within the jurisdiction a widower, widow or next of kin, the Probate Registrar shall collect and secure all moneys and other property belonging to the deceased and shall then inform the nearest Consular Officer of such country of the death and transmit to him a list of the money and property of the deceased.

Application by Consular, Officer or person authorized by him to administer estate
Rule 45. Application may be made to the Court by any such Consular Officer or by any person authorized by him in writing and under the consular seal, for leave to

administer the estate of the deceased and the Court may make such order as to security for payment of debts and the method of administration as the Court shall deem fit and vary such order when and so often as it is expedient.

E. Administration Generally

Accounts to be filed

Rule 46. (1) Every person to whom a grant of probate or Letters of Administration shall have been made and every Administrator appointed by the Court shall file in Court the accounts of his administration every 6 months from the date of the grant or the appointment until completion of the administration.

(2) Any such executor or administrator who fails within any such period to file his accounts as aforesaid shall be liable to a penalty of N100.00 for every day of default. Every such fine shall on non-payment be enforceable by distress, and failing sufficient distress, by imprisonment for a term not exceeding 6 months.

(3) When an account is filed in Court under this rule, the Court shall scrutinize such account if it appears to the Court that by reason of improper, unvouched or unjustifiable entries or otherwise such account is not a full and proper account, the Court shall require the person filing the account to remedy such defects as there may be within such time as the Court may deem reasonable for the purpose; and on failure to remedy such defects be deemed to have failed to file an account within the meaning of this rule and proceedings may be taken against such person accordingly.

(4) It shall be the duty of the Probate Registrar to bring to the notice of the Court, the fact that any executor or administrator has failed to file his accounts as required by this rule.

(5) The Court may, on the motion of any party interested, or suo motu, summon any executor or administrator failing as aforesaid, to show cause why he should not be punished.

(6) The Court may for good cause shown extend the time for such filing of accounts.

(7) Any executor or administrator who has been granted an extension of time to file such accounts, and who fails within such extended time to file such accounts,

shall be liable to the penalty set out in sub-rule above and the procedure for bringing him before the Court shall be as set out in same sub-rule (2).

(8) Such accounts shall be open to the inspection of all persons satisfying the Probate Registrar that they are interested in the administration.

(9) In this rule, the word "accounts" shall mean and include an inventory, an account of the administration, the vouchers in the hands of the executor or administrator relating thereto and affidavit in verification.

The Wills Law Cap. 141 Laws of Lagos State 1973 Edition is hereby repealed.

26. Interpretation.

In this Law unless the context otherwise requires the following expressions shall have the meanings hereby respectively assigned to them, this is to say -

"child" includes a child whose paternity has been acknowledged in accordance with the Customary Law applicable in the State, a child adopted whether before or after the commencement of this Law in pursuance of an adoption order made under the adoption Law, Cap. A5, Laws of Lagos State, and a child legitimated under the Legitimacy Law Cap. LBS Laws of Lagos

State, *

"the court" means the High Court;

"property" include right of occupancy, sublease, sub-underlease and funds, securities for moneys, shares, debts, chose in action, rights, credits, goods and all other property whatsoever which by law devolves upon the executor or administrator and any share or interest therein;

"Will" includes the testament, a codicil and an appointment by will or by writing in the nature of a will in exercise of a power.

10. Citation and commencement.

This Law may be cited as the wills Law and shall come into force on the 24th day of August, 1989.

PROBATES (RE-SEALING) ACT
ARRANGEMENT OF SECTIONS

SECTION

1. Re-sealing of Probates and letters of administration granted in Commonwealth countries.
2. Re-sealing of probates and letter of administration granted in a State.
3. Conditions to be fulfilled before re-searing.
4. Duplicate or copy of probate, etc., admissible.
5. Security for payment of debts.
6. Effect of re-sealing.
7. Rules of court.
8. Interpretation
9. Short title

PROVATES (RE-SEALING) ACT

An Act to make provisions for the re-sealing of probates and letters of administration issued and sealed in the High Court of a State by the High Court of another State and make similar provisions relating to Commonwealth countries.

[1966 No.13.]

(7 March, 1966)

[Commencement]

1. Re-sealing of probates and letters of administration granted in Commonwealth countries.

Where a court having jurisdiction in matters of probate in a Commonwealth country has, neither before or after the commencement of this Act, granted probate or letter of administration in respect of the estate of the deceased person, the probate or letters so granted may subject to the provisions of this Act, on being produced to, and a copy thereof deposited with, the High Court of a State, be re-sealed with the seat of that Court.

2. Re-sealing of probates and letters of administration granted in a State.
Where the High Court of a State has, either before or after the commencement of this Act, granted probate or letters of administration in respect of the estate of the deceased person, the probate or letters so granted may, subject to the provisions of this Act, on being produced to, and a copy thereof deposited with, the High Court of any other State, be re-sealed with the seal of that Court.

3. Conditions to be fulfilled before re-sealing
The High Court of a State shall, before re-sealing a probate or letters of administration under this Act, be satisfied—
 - a. that probate duty has been paid in respect of so much, if any, of the estate as liable to probate duty in that State; and
 - b. in the case of letters of administration, that security has been given in a sum sufficient in amount to cover the property, if any, in that State to which the letters of administration relates, and may require such evidence, if any, as it thinks fit to the domicile of the deceased person.

4. Duplicate or copy of probate, etc., admissible
For the purpose of this Act, a duplicate of any probate or letters of administration sealed with the seal of the court by which the grant was made,

copy thereof certified as correct by or under the authority of that court, shall be admissible in the proceeding before the High Court of any State.

5. Security for payment of debts.

The High Court of a State may, if it thinks fit, on the application of any creditor, require, before re-sealing, that adequate security be given for the payment of debts due from the estate to creditors residing in that State.

6. Effect of re-sealing

A probate or letters of administration re-sealed by the High Court of any State under this Act, shall have the like force and effect and have the same operation in the State in which it is re-sealed as if granted by the High Court of that State.

7. Rules of court

(1) The Chief Judge of the High Court of any State may make rules of court for regulating the procedure and practice, including fees and costs, in that Court, of and incidental to an application for the re-sealing of a probate or letters of administration under this Act.

(2) Subject to any modifications and exceptions made by such rules, the enactments for the time being in force in relation to the payment of fees and probate duty shall apply as if the person who applies for resealing under this Act were a person applying for probate or letters administration in Nigeria.

8. Interpretation

In this Act

“Commonwealth countries” means a country which is a member of Commonwealth of Nations;

“State” includes the Federal Capital Territory, Abuja.

9. Short title

This Act may be cited as the Probate (Re-sealing) Act.

MRS ALERO JADESIMI

V.

1. MRS. VICTORIA OKOTIE-EBOH
 2. DR. (MRS) C.R. AKELE
 3. JOHN OKOTIE-EHOH
- SUPREME COURT OF NIGERIA CITATION

SC 188/1992

MUHAMMADIJ LAWAN UWAIS, CJN (Presided and Read the Leading Judgment)

ABUBABARK BASHIR WALL, JSC

SYLVESTER UMARU ONU, JSC

YEKINI OLAYIWOLA ADIO, JSC

ANTHONY IKECHUKWU, IGUH, JSC

6TH FEBRUARY, 1996

Cited Cases:

Abinabina v. Enyimadu (1953) A.C. 207

A-G., Oyo State v. Fairlakes Hotels Ltd. (1988) 5 NWLR (Pt. 92) 1

Akphene v. Barclays Bank of Nigeria (1977) 1SC 47

Arisa v. State (1988) 3 NWLR (Pt. 83) 386

Balonwu v. Chinyelu (1991) 6 NWLR (Pt. 198) 382

Ogunsola v. NICON (1996) 1 NWLR (Pt. 423) 126

Shonekan v. Smith (1964) 1 All NLR 168

Warter v. Warter (1888-1890) 13-15 P.D. 35

Counsel:

KehindSofola, SAN (with him, Abubakar Idris) - for the Appellant

1st Respondent Absent and Unrepresented

A. Obe (Mrs) - for the 2nd Respondent

A.Y. Odebala - for the 3rd Respondent

UWAIS, C.J.N (Delivering the Leading Judgment): By a writ of summons taken of the High Court of Lagos State holden at Lagos, the appellant, as plaintiff, clai against the respondents, as defendants, as follows as per her Amended Statemen

Claim:

"(a) That the Court shall pronounce for the force and validity of the last will and testament dated the 21st day of August, 1947 Chief Festus Samuel Okotie-Eboh, formerly known and called Festus Sam Edah) late of Ogorode, Sapele, Bendel State deceased, who died on the 15th day of January, 1966; and

(b) That the Court shall revoke the grant of the said Letters of Administration of the Estate of the said deceased dated the 24th day of June, 1971"

The facts of the case, which are not in dispute, are briefly thus, The deceased, Chief Festus Samuel Okotie-Eboh was a son to an Itsekiri father and an Urhobo mother. In 1942 he got married to the 1st respondent according to Itsekiri native law and custom. The appellant as well as the 2nd respondent are the children of the marriage. There are of course other offsprings of the deceased, of whom the 3rd respondent is one, who were born by woman that were not married to the deceased.

In 1947 the deceased made a will at Sapele (Exhibit P1) which was signed by Chief Egboro (P.W. 2) and Mr. Okitkpi (P.W. 3) as witnesses. The will was dated the 21st day of August 1947 and was deposited at the Probate Registry of the High Court of Lagos State since, as at that date, that was the only Probate Registry existing in Nigeria.

In March, 1961, whilst the customary marriage was subsisting the deceased and the 1st respondent decided to re-marry or rather re-affirmed their marriage by going to a Marriage Registry in Lagos where they got married under the Marriage Act, Cap. 115 of the Laws of the Federation of Nigeria, 1958.

On 15th January, 1966, the deceased, who had been a minister of the Federal Government of Nigeria, was killed during a military coup d'etat which overthrew the Government. Sometime in 1971 the appellant together with the 1st, 2nd and 3rd respondents applied to the High of the then Bendel State for the grant of Letters of Administration to enable them administer the properties of the deceased in that State. The Letters of Administration were granted. In order that they might be able to administer the estate of the deceased in Lagos State, they got the Letters of Administration issued by the High Court of Bendel State, released sometime in 1972 at the High Court of Lagos State. By agreement between them, the appellant and the

1st respondent were to administer the estate in Lagos State while the 2nd and 3rd respondents were to administer the estate in Bendel State. All the children of the deceased, who were known to the appellant, were maintained by the administratrixes and administrator from funds received from the estate of the deceased.

At the time of applying for Letters of Administration the parties to this case were not aware that the deceased had made a will. According to the evidence adduced by the appellant and 1st respondent sometime in 1974 it was discovered that the deceased made a will in 1947 and that the will was deposited at the Probate Registry of the High Court of Lagos State. Whilst accepting that a will was made in 1947 by the deceased, 2nd respondent called the evidence to show that there was another will made by the deceased in 1964 and that both the 1947 and 1964 wills were discovered in a safe kept in the room of the deceased at Sapele, Mr. Lawrence Okotie-Eboh (D.W.4) who was a witness called by the 2nd respondent, testified that both the 1947 and 1964 wills were opened and read in 1970 at a family meeting called for that purpose, and that the 1st respondent gave the assurance that she would continue to look after all the children of the deceased. That as a result of the assurance the two wills were destroyed by being torn to pieces and thrown away. However, the learned trial Judge (Agoro, J., as he then was) found that the issue joined by the parties on the pleadings which were for him to decide were as follows:

- (i) Whether the High Court of Lagos State has jurisdiction to entertain the action in this suit.
- (ii) Whether the will, Exhibit P1 dated 21st August, 1947 of Late Chief Festus Samuel Okotie-Eboh formerly known as Chief Festus Sam Edah was duly executed as required by law.
- (iii) Whether the will, Exhibit P1 dated 21st August, 1947 of Late Chief Festus Okotie-Eboh formerly known as Chief Festus Sam Edah could be registered as revoked by operation of law by reasons of the fact that the previous marriage in 1942 to the first respondent under Native Law Custom was later on 3rd March, 1961 re-affirmed by another marriage.

between the same parties under the Marriage Act, Cap 115, Law of the Federation of Nigeria and Lagos 1958.

(iv)

Whether the Customary Laws of Urhobo and/or Itsekiri in the Bendel State of Nigeria could operate to invalidate and render void the will, Exhibit P1 dated 21st August, 1947 of Late Chief Festus Samuel Okotie-Eboh formerly known as Chief Festus Sam Edah.

(v)

Whether the action in this suit was properly constituted by reason of the fact that the plaintiff herein is also the same person shown as the 4th defendant in the suit"

The learned trial Judge held that he had jurisdiction to hear the suit and that the 1947 will (Exhibit P1) was validly made by the deceased. He further held that Exhibit P1 was not revoked by virtue of "the marriage on 3rd March, 1961 between the same parties (Late Chief Okotie-Eboh and the first defendant) under the Marriage Act, Cap. 115, 1958" He answered the fourth issue also in the negative. With regard to the fifth issue he held that the action was properly constituted since the appellant was a device under the will and an administratrix of the Letters of Administration granted in Bendel State and released in Lagos State respectively. The learned trial Judge concluded his judgment in favour of the appellant as follows:

"Finally, in view of the decisions which I have reached on the issues raised on the pleadings filed in this action and for the reasons stated herein, I hereby pronounce for the force and validity in solemn form of law that the will marked Exhibit P1 dated 21st August 1947 was duly executed by late Chief Festus Sannuel Okotie-Eboh formerly known as Chief Festus Sam Edah as required by the Wills Act 1837 of England which was the applicable law. There will be consequential order that the re-sealing in the Lagos State of the Letters of Administration (Without Will) dated 24th June, 1971 granted by the Probate Registry of the High Court of the then Mid-Western state now Bendel State, be and is hereby revoked forthwith. In view of the special circumstances of this matter, it is ordered that the parties shall bear their own costs of the present action."

Dissatisfied with this decision, the 2nd and 3rd respondents appealed to the Court of Appeal. In allowing the appeal, the lower Court (Achiike, Kalgo and Tobu, J.J.C.A.) concluded its judgment, per Achiike, J.C.A. who delivered the lead judgment, with which the other Justices concurred, as follows:

"However, in view of the conclusion reached earlier in this appeal that the subsequent marriage in 1961 under the Marriage Ordinance, now Act, between the late Chief Okotie-Eboh and the 2nd respondent (i.e. Mrs. Victoria Okotie-Eboh) revoked the 1947 will of the deceased, Chief Okotie-Eboh, by the operation of section 18 of the Wills Act, 1837, it follows that this appeal succeeds and it is allowed. Accordingly, the judgment of Agoro, J. (as he then was delivered on 24th May, 1988 is hereby set aside. I make no order as to costs." (First parenthesis mine).

In turn, the appellant herein felt aggrieved and brought the present appeal, formulating only one issue for our determination. The issue reads:

"Whether or not the Will of Chief Festus Samuel Okotie-Eboh duly executed by him on 21st August, 1947 has been revoked by operation of law by his subsequent Marriage under the Marriage Act in 1961 to the same woman to whom he had been lawfully and continuously married under customary law since 1942 upto the date he executed the Will and until his death in 1966."

The 1st respondent herein Mrs. Victoria Okotie-Eboh is unrepresented brief of argument has been filed by her or on her behalf. The 2nd respondent filed her brief of argument adopting the issue for determination formulated by the appellant and complaining that the appellant has shifted ground in this Court from her contention in the Court of Appeal. I will come to this later. The 3rd respondent also formulated a single issue for determination in his brief of argument. The issue is slightly at variance with the raised by the appellant. It states:-

"Whether or not the Will of Chief Festus Samuel Okotie-Eboh said to be executed by him in Sapele on the 21st of August, 1947 has been revoked by operation of law by his subsequent marriage under the

Marriage Act in 1961 to the 1st defendant/respondent to whom the said Chief Festus Samuel Okotie-Eboh has been married under customary law, 1942.”

Mr. KehindeSofala, learned Senior Advocate has conceded in the appellants brief of argument as well as in his oral submissions that the Wills Act, 1837, of England, applies to this case as a Statute of general application. However, his contention is whether it is proper, in the circumstances of this case and indeed Nigeria, that the provisions of section 18 of the Wills Act should apply to Exhibit P1 since the peculiar circumstances of the present case could not have been contemplated by the Parliament in England when it enacted the 1837 Act. He argued that the Court of Appeal (Per Achike, J.C.A.) could not be correct when it held that the Will made by the deceased stood revoked by the application of the provisions of section 18 of the Wills Act, 1837. In support of the argument, Learned Senior Advocate submitted that three different statutory provisions need to be considered in determining the issues joined in this case. They are, namely, Section 18 of the Wills Act; section 32 of the Interpretation Act, Cap. 192 of the Laws of the Federation of Nigeria, 1990 and sections 11 and 47 & the Marriage Act, Cap.115, of the Laws of the Federation of Nigeria, 1958. He canvassed that the British Parliament while passing the Wills Act, 1837 could not have contemplated the situation created by the Marriage Act, Cap. 115 for Nigeria. Consequently, he submitted that, the provisions of the Wills Act, 1837 ought to be applied only if the local circumstances so permit. He argued further that had the deceased been lawfully married under the Marriage Act to the 1st respondent at the time of executing Exhibit P1, then the provisions of the Wills Act, 1837 would have applied fully and have effect as contemplated by the British Parliament in 1837. Learned Senior Advocate submitted that it was to avoid the type of absurdity created by the provisions of the Wills Act, 1837 that the Nigerian Legislature enacted the provisions of Section 32 of the Interpretation Act, Cap. 192. He argued that the incidents of marriage confer status, so that one cannot be partly married and partly unmarried as the outright application of the provisions of Section 18 of the Wills Act, 1837 would bring about. The status of being married under Islamic Law or Customary Law is well recognized in this country and such

marriages should not be accorded any status that is inferior to that of marriages under the Marriage Act, Cap. 115. He submitted that it is a notorious fact in this country that persons who got married under the Marriage Act do choose to go through a customary or Islamic Law Marriage thereafter. He submitted that there is nothing wrong in law with such subsequent marriage. Learned Senior Advocate made reference to the provisions of item 60 of part 1 to the Second Schedule of the Constitution of the Federal Republic of Nigeria, 1979, Cap 62 of the Laws of the Federation of Nigeria, 1990, to buttress his argument. He, therefore, submitted that a marriage according to the Marriage Act, Cap. 115 after going through a customary marriage is simply a surplusage.

Still in further argument, Mr. Sofola, submitted that the interpretation given by the Court of Appeal to the provisions of Section 18 of the Wills Act, 1837 has led to absurdity. By the canon or interpretation of Statutes, such absurdity ought to be avoided because it had the result of holding that the deceased was not lawfully married to the 1st Respondent until 1961 when the marriage under the Marriage Act, Cap. 115 took place. To further emphasize the absurdity alleged, learned Senior Advocate submitted that the decision of the Court below had rendered all the acts performed by the deceased and the 1st respondent together as husband and wife since 1942 up to 1961 ineffective, null and void, so that even the appellant and 2nd respondent, who the product of the association between the deceased and the 1st respondent, would be considered to be bastards. This, he contended, is contrary to Nigerian laws which provide that the relationship between the persons was lawful and that the children of the relationship have full legal capacities as such.

To further support his contention, Mr. Sofola stated that the Wills Act, 1838 made the provisions under Section 18 thereof in order to protect a woman who married a man after the latter had made a Will. It is in order to any mischief which section 18 might bring about that section 177 of the Property Act 1925 of England was enacted. He cited the following cases in support of his submissions. *Home Building and Loan Association v. Blaisdell* (1934) 290 US 398, 78 LED 417; *Ifezue v. Mbadugha & An* (1984) 1 SCNLR 427; (1984) 1 All NLR 256 at Pp. 269 and 279; *A-G v. Lockwood* (1842M & W 191 at p. 195; *Mobil v. Okudo* (1979) 6-9 SC 32 at Pp. 48-49.

In reply, Mrs. Obe learned counsel for the 2nd respondent argued, in brief of argument which she filed on behalf of her client, by referring to of the Wills Law Cap. 141 of the Laws of Lagos State, 1973 which provides in part as follows:

"Every will made by a man or woman shall be revoked by his or marriage (other than a marriage in accordance with customary law)....."

and contending that a Marriage contracted under the Marriage Act between two persons who are already lawfully married under customary or religious, law provided that neither of such persons is married to a third party under customary law, is valid. She, therefore, submitted that local circumstances permit the application of section 18 of the Wills Act, 1837, and that section 32(b)(ii) of the Interpretation Act, does not exclude the application of the Wills Act, 1537.

Learned counsel further referred to sections 11, 33, 35 and 47 of the Marriage Act Cap. 115 of the Laws of the Federation of Nigeria 1990 to submit that it is the Marriage Act that recognises the validity of Islamic and Customary Marriages and not Item 60 of Part 1 of the Second Schedule to the 1979 Constitution, Cap. 62. She stated that although neither customary nor Islamic nor Act Marriage is superior or inferior to the other different types of Marriage carry different rights and obligations and confer different benefits and have different effects. She disagreed with the argument that going through different marriages is mere surplusage, as contended by the appellant, but that it is an indication that the parties concerned choose to have all the different benefits and obligations attached to such marriages. She argued that no injustice or absurdity or unwholesomeness will or did result from interpreting and applying the provisions of section 18 of the Wills Act, 1837 as was done by the Court of Appeal Learned counsel submitted that the provisions of section 18 are clear and unambiguous and therefore, should be taken to have perfectly expressed the intension of the legislature. She finally canvassed that the provisions of section 18 of the Wills Act, 1837 apply in Nigeria notwithstanding that Islamic and Customary Law Marriages and subsequent marriages under Marriage Act might be valid.

Mr. Odebala learned counsel for the 3rd respondent has argued in the brief of argument, which he filed on behalf of his client, that the Wills Act, 1837 is a statute

of general application as decided by this Court in *Idehen v. Idehen* (1991) 6 NWLR (Pt. 198) 382 at p.416. He submitted that section 18 of the Wills Act 1837 is very clear and unambiguous. Similarly the provision of section 32 of the Interpretation Act, Cap. 192 and those of sections 11 and 47 of the Marriage Act are unambiguous. He contended that when all these sections of the Acts are read together they do not create any ambiguity. Learned counsel argued further that a marriage contracted under the Marriage Act is a monogamous marriage. Therefore, the provisions of section 18 of the Wills Act will apply. By virtue of sections 11 and 47 of the Marriage Act, the customary marriage, which by nature is polygamous, becomes monogamous and therefore makes the provisions of section 18 of the Wills Act, 1837 applicable. It follows, therefore, he canvassed, that the subsequent marriage entered in 1961 between the deceased and 1st respondent had the effect of revoking the will made by the former in 1947.

Although the 3rd respondent did not raise any preliminary objection on whether the appellant can present a case in this Court which is different from the case he presented in the Court below, he argued on the authority of *Ajide v. Kelani* (1985) 3 NWLR (Pt. 12) 248 at p. 251 that the appellant should not be allowed to present a new case before us.

I now turn to the objection raised by the 2nd respondent to which I have earlier referred. As a general rule an appellant will not be allowed to raise a question which was not raised or tried or considered by the trial court or the Court below, but where the question involves substantial point of law, whether substantive or procedural, and it is plain that no further evidence could have been adduced which would affect the decision of the points, then, the Court will allow the question to be raised and the point taken in order to prevent an obvious miscarriage of justice. See: *Abinabina v. Kojo Enyimadu* (1953) A.C. 207 at p. 215; *Shonkan v. Smith* (1964) A.NLR 168 at p. 173; *Akpene v. Barclays Bank of Nigeria & Anor* (1977) 1 SC 47 and A-G. *Oyo State v. Fairlakes Hotels Ltd.* (1988) 5 NWLR (Pt. 92) 1 at p. 14.

Furthermore, Order 6 rule 5(1) of the Supreme Court Rules, 1985, as amended provides as relevant thus:

"...if the appellant intends to apply in the course of the hearing for leave to introduce a new point taken in the court below, this shall be indicated in the brief."

The first point to be considered is whether the appellant in this case has introduced a new point which was not taken in the Court below. This is not the point raised by Mrs. Obe. Rather her contention is that the appellant has shifted ground in this Court from his argument in the Court of Appeal whether he argued that provisions of Section 18 of the Wills Act, 1837 were applicable by virtue of Section 177 of the Law of Property Act, 1925. Learned counsel for the 2nd respondent has not cited any authority or rule of court which supports her contention. However, learned counsel for 3rd respondent also identified himself with her submission. I am not myself aware either of such authority or rule. It is to be noted that the argument of a party in the Court below need not necessarily be the same with his argument in this Court appeal in the Court below is invariably an appeal against the trial court, while the appeal in this Court is a complaint against decision of the Court of Appeal. It is not always that the decisions of the trial court and the court below become the same. They may be diametrically opposed as, indeed, is that case with the present appeal. In such a situation of argument to be presented by a party in this Court may differ from the argument canvassed in the Court of Appeal. This is made clearer by the fact that the premises on which the two decisions below were arrived at may be at variance. Again the appellant here, under that situation, may not be the appellant in the Court of Appeal but respondent and so his argument in the Court below as a reply should not be expected to be presented in this Court. I, therefore, see nothing wrong with the presentation of the appellant's appeal before us. See: *Ogunsola v. NICON* (1996) 1 NWLR (Pt.423) 126 at p. 136. Suppose the view which I have taken on this matter is wrong; this court has the inherent and statutory power under Section 22 of the Supreme Court Act, Cap. 424 of the laws of the Federation of Nigeria, 1990 and Order 8 rule 12 of the Supreme Court Rules, 1985, to allow the appellant to raise the point complained against even if he had not applied for leave to do so under Order 6 rule 5(1)(b) of the Supreme Court Rules, 1985, as amended. This is because the point the appellant has raised in the issue formulated in his brief

of argument raises substantial question of law and our failure to consider it is likely to occasion miscarriage of justice:- See: *Alpene v. Barclays Bank of Nigeria & Anor* (supra) and *A-G of Oyo State v. Fairlakes Hotel Ltd.* (supra) at Pp. 32, 49H and 57A.

I think it is necessary and indeed important at this stage to determine the statutory provisions applicable to this case. Counsel for all the parties have jointed and severally referred to and rely on the provisions of the following enactments both their oral arguments and their briefs of argument - (1) Wills Act, 1831 England (2) Wills Law, Cap. 133 of the Laws of Western Nigeria, 1959 (3) Wills Law Cap. 141 of the Laws of Lagos State, 1972 (4) Law of Property Act, 1925 of England (5) Interpretation Act, 1964 (6) Interpretation Act, Cap. 89 of the Laws of the Federation of Nigeria, 1958 (7) Interpretation Act, Cap. 192 of the Laws of the Federation of Nigeria, 1990 and (8) Marriage Act Cap. 115 of the Laws of the Federation of Nigeria, 1958. It is not in dispute that the deceased made his will (Exhibit P 1) on the 21st day of August, 1947. That the law applicable to the will is at the date of its execution, the Wills Act, 1837 of England, being a statute of general application.

It is also not in dispute that the deceased and the 1st respondent who were earlier married under Isekiri customary law went into another Marriage in Lagos under the provision of the Marriage Act, Cap. 115 in 1961. Therefore, at the time of the death of the deceased in 1966 the Act, and not the Customary law, was the law applicable to his marriage with the 1st respondent. The appellant filed her suit in the High Court of Lagos State on the 3rd day of August, 1984 (as per her Writ Summons). As at that date the law applicable in Lagos State with regard to the application of statutes of general application was the law (Miscellaneous Provisions) Law, Cap. 65 of the Laws of Lagos State, 1973, However, Lagos State being the erstwhile Western Region of Nigeria, when the Wills Law No. 28 of 1958 enacted for the Western Region of Nigeria, the Wills Act 1837 ceased to apply in the Region with effect from 24th July, 1958. Therefore, the provisions of the (Miscellaneous Provisions) Law, Cap. 65, which came into force on 20th January 1964 do not apply to the Wills Act 1837 as a statute of general application in the

the provisions of section 2 subsection (1) of the Law (Miscellaneous Provisions) Law, Cap. 65 which states:

(1) Subject to the provisions of this section and except in so far as other provision is made by any Federal or State enactment, the common law of England and the doctrines of equity, together with the statutes of general application that were in force in England on the first day of January, 1990 shall be in force in the Lagos State. It follows that in interpreting the Wills Act 1837 recourse has to be made to in the law in parinateria which preceded the law (Miscellaneous Provisions) Cap. 65, and that is the repealed Interpretation Act, Cap. 89 of the Laws of the Federation of Nigeria and Lagos, 1952, (which into force on the 9th day of November, 1939). However, this is a distinction without a difference line, the Law (Miscellaneous Provisions) law, Cap. 65, is *mutatis mutandis* the same as the Interpretation Act, Cap. 89.

Now section II subsection (1) (d) and section 47 of the Marriage Act, Cap. 115 provide:

"11(1) The registrar, at any time after the expiration of twenty-one days and before the expiration of three months from the date of the notice, upon payment of the prescribed fee, shall thereupon issue his certificates as in Form C in the First Schedule: Provided always that he shall not issue such certificate until he has been satisfied by affidavit:-

(d) that neither of the parties to the intended marriage is married by native law and custom to any person other than the person with whom such marriage is proposed to be contracted"

"47. Whoever contracts a marriage under the provisions of this Act, or any modification or re-enactment thereof, being at the time married in accordance with customary law to any person other than the person with whom such marriage is contracted, shall be liable to imprisonment for five years".

The foregoing provisions establish that it is lawful for parties married under customary law to contract a marriage under the Marriage Act and that it is an offence punishable with imprisonment for a person married under customary law to get married under the Act to a third party. But section 18 of the Wills Act, 1837 provides:-

"18. Every will made by a man or woman shall be revoked by his or her marriage except a will made in exercise of power of appointment in default of such appointed pass to his or her heir, executor or administrator of the person entitled as his or her next of kin under any written law relating to the distribution of the estate of persons dying intestate".

The question is: is the will of the deceased made in 1947 revoked following his contracting a valid marriage with the 1st Respondent in 1961 in accordance with the provisions of the Marriage Act, Cap. 115? It is the contention of the Appellant that the will has not been affected by the provisions of section 18 of the Wills Act, 1837. However, the 2nd and 3rd Respondents contend otherwise. The trial court found that the will was valid, but the Court of Appeal found that the will had become revoked as a result of the 1961 marriage. It held as follows, as per Achike, J.C.A:

"It seems to me, therefore, that the combined effect of sections 11(i) (d) (sic) and 47 of the Marriage Act is that there is no prohibition of marriage under the said Act between two persons who are already married to each other under customary law.....

It seems to me therefore that where the same parties have already gone through a form of marriage under customary law and subsequently went through a marriage under the Marriage Act the second marriage is valid as a monogamous marriage and would be so recognised in countries where monogamous marriages pre-dominate. The marriage under the Marriage Act, as it were, converts the customary marriage that was potentially polygamous to a monogamous marriage which, no doubt, is the form of marriage contemplated under section 18 of the Wills Act, 1837."

So far so good, but the learned Justice of the Court of Appeal concluded that "Applying the unambiguous provisions of section 18 of the Wills Act, 1837, to the circumstance of this case I am satisfied that the will made in August, 1947, Exhibit P1, was revoked by the 1961 Marriage between the late Chief Festus Okote-Eboh and the 2nd Respondent (now 1st Respondent)" (Parenthesis mine).

Although the learned justice adverted to the provisions of section 45 of An Act, Cap. 89 of the Laws of the Federation of Nigeria, 1958, he nevertheless arrived at the aforementioned conclusion.

Now section 45, subsections (1), (2) and (3) of the Act in question, which are the subsections pertinent to this case, state as follows:

"45(1) Subject to the provisions of this section and except in so far as other provision is made by any Federal law; the common law of England and the doctrines of equity together with the statutes of general application that were in force in England on the 1st day of January, 1990, shall be in force in Lagos and, in so far as they relate to any matter written the exclusive competence of the Federal legislature, shall be in force elsewhere in the Federation.

(2) Such imperial laws shall be in force so far only as the limits of jurisdiction and local circumstances shall permit and subject to any Federal law.

(3) For the purpose of facilitating the application of the said Imperial laws they shall be read with such formal verbal alterations not affecting the substance as to names, localities, courts, officers, persons, moneys, penalties and otherwise as may be necessary to render the same applicable to the circumstances."

It appears to me from the provisions of section 45 of the Interpretation Act, Cap. 89 that although statutes of general application are applicable, nevertheless their applicability is not without limitations. It is clear from the provisions of subsection (2) (supra) that the application of the statutes could be curtailed by local circumstances as well as local jurisdictions. In the present case the deceased is to be

taken to have known all the laws in question referred to above. That is the fallacy law. If it was his intentions, after contracting the 1961 marriage under the Marriage Act, Cap. 115, that he would vary or change or even revoked Exhibit P1, he would have taken such a step long before he was killed in 1966. However, he did nothing the sort. It must therefore, be taken that he had intended that the will should remain in force irrespective of the 1961 marriage.

It is a matter of common knowledge that most people in Nigeria who contract marriages under the Marriage Act, undergo a form of customary marriage earlier a matter of practice and adherence to the custom of their forefathers. Some refer to such practice as "traditional engagement" while others simply refer to it as solemnization of customary marriage. It is never intended by the practice that marriage under the Marriage Act should nullify the customary marriage engagement but rather that it would supplement the practice or custom. The parties are of course aware that by applying the Marriage Act to their relationship, marriage would become monogamous. However, it is a matter of common knowledge that in spite of the punishment provided under section 47 of the Marriage Act against any of the parties entering another customary marriage, the male party particular observe the restriction more in breach than obedience with impunity in my opinion, therefore, the circumstances of Nigeria militate against the application of section 18 of the Wills Act, 1837 to nullify a will made prior to contract marriage under the Marriage Act. In holding this view I am further strengthened by the fact that section 15 of the Wills Law of Western Nigeria, Cap. 133 of the Laws of Western Nigeria, 1959, which contains the same provisions as those of section 15 of the Wills Law of Delta, Edo, Lagos, Ogun and Oyo State respectively, except the revocation provided for Wills Act, 1837 from applying to customary law marriages. The section reads:

"15. Every will made by a man or woman shall be revoked by his or her marriage (other than a marriage in accordance with customary law) except a will made in exercise of a power of appointment whether the real or personal estate thereby appointed would not in default of such appointment pass to his or her heir, executor or administrator

or the person entitled as his or her next of kin under any written law relating to the distribution of the estate of persons dying intestate."

It is to be observed that but for the exemption of marriages under law, section 15 is word for word the same as Section 18 of the Wills Act, 1837.

I, therefore come to the conclusion that the Court of Appeal erred in that Exhibit P1 was revoked by reason of the 1961 marriage between the deceased and the 1st respondent. Consequently, the appeal succeeds and I allow it. The decision of the Court of Appeal is set aside and the judgment of the trial court, which arrived at the right decision by wrong reasoning.

Accordingly, I hereby pronounce for the force and validity of the last Will and Testament dated the 21st day of August, 1947 (Exhibit P1) of Chief Okotie-Eboh (formerly known and called Festus Sam Edah) Late of Ogorode, Sapele, Delta State, who died on 15th day of January, 1966.

Secondly I hereby revoke the grant of Letters of Administration (Without 24th day of June, 1971 made by the Probate Registry of the Western State (which later became the High Court of Bendel State (and re-sealed in the Probate Registry of the High Court of Lagos State).

There will be no order as to costs.

WALL, J.S.C. I have had a preview of the lead judgment of my learned brother Uwais, C.J.N and I entirely agree with and adopt the reasons he gave for allowing the appeal and restoring the final orders made by the trial court.

As opined by the learned CJN, that the provisions of the Marriage Act are today in Nigeria being observed more in form than in substance, it will create injustice and absurdity in the law as it applies to the circumstances in this case to endorse the conclusion of the Court of Appeal "That the will made in August, 1947, Exhibit P1 was revoked by the 1961 Marriage between the late Chief Festus Okotie-Eboh and the 2nd respondent (now 1st respondent).

Late Chief Festus Okotie-Eboh and the 1st respondent were married under customary Law. The same persons went through another marriage under the Marriage Act. Before the second marriage late Chief Festus Okotie Eboh had made a Will-Exhibit P1 when he was married to 1st respondent under the customary law. By

virtue of sub-sections (2) and (3) of S. 45 of the interpretation Act Cap. 89, Laws the Federation of Nigeria and Lagos 1958, the Wills Act, 1837 shall be applied taking into account, our customs and tradition as the local circumstances may permit. The Court of Appeal was therefore in error when it construed S. 18 of the Wills Act, 1837 as revoking Exhibit P without taking into consideration the provisions of sub-section (2) and (3) of S.45 of the Interpretation Act (supra). If the Court of Appeal had done so, it would have come to a different decision by upholding the validity of Exhibit P.

The appeal succeeds for this and the fuller reasons contained in the judgment, the consequential orders of which I hereby adopt.

ONU, J.S.C.: I had the opportunity of a preview of the judgment of my learned brother Uwais, C.J.N. just delivered. I am in entire agreement that for the reasons therein ably assigned, the appeal be and is hereby allowed.

By way of emphasis, my answer to the lone issue whose purport is:

"Whether or not the Will of Chief Festus Samuel Okotie-Eboh duly executed by him on 21st August, 1947, has been revoked by operation of law by his subsequent marriage under Marriage Act in 1961 to the same woman to whom he had been lawfully and continuously married under customary law since 1942 up to the date he executed the will and until his death in 1966."

is rendered in the positive in that while the trial court was, in my opinion albeit for the wrong reasons, in holding, *inter alia*, that it not only jurisdiction the suit and that the 1947 will (Exhibit P1) was validly made by the deceased further the Exhibit P1 was not revoked by virtue of "the marriage on 3rd 1961 between the same parties, late Chief Okotie-Eboh and the First defendant under the Marriage Act, Cap. 115, 1958" the Court of Appeal (Coram: Achik and Tobi, JJ.C.A) on the other hand was wrong when it held as follows:

"However in view of the conclusion reached earlier in this appeal that the subsequent marriage in 1961 under the Marriage Ordinance now Act, between the late Chief Okotie-Eboh, and the 2nd respondent (i.e. Mrs. Victoria Okotie-Eboh revoked 1947 will of the

deceased, Chief Okotie-Eboh by the operation of Section 18 of the Will Act, 1937, it follows that this appeal succeeds and is allowed. Accordingly the judgment of Agoro, J. (as he then was) delivered on 24th May, 1988, is hereby set aside....."

And more particularly, when it concludes thus:

"Applying the unambiguous provisions of section 18 of the Wills Act, 1937, to the circumstances of this case I am satisfied that the Will made in August, 1947, Exhibit P1, was revoked by the 1961 Marriage between the late Chief Okotie Eboh and the 2nd respondent now 1st respondent". See *Balonwu v. Chinyelu* (1991) 4 NWLR (Pt. 83) 386.

Now Section 18 of the Wills Act, 1837 referred to above provides as follows:

"Every will made by a man or a woman shall be revoked by his or her marriage except a will made in exercise of a power of appointment, when the real or personal estate thereby appointed would not in default of such appointment pass to his or her heir, customary heir, executor or administrator or the person entitled as his or her next of kin under any written law relating to the distribution of the estate of persons dying intestate" (Italics is mine for emphasis).

At the hearing of this appeal on 6th November, 1995 learned Senior Advocate Mr. Kehinde Sofola representing the appellant after indicating that he relied on his written Brief, made oral expatiation thereof to the following effect.

First, that the provisions of section 18 of the Wills Act, 1937 must be applied in so far and only to the extent that our peculiar local circumstances permit. He said that this is because, this court is now faced with peculiar situation of interpreting a statute made, not in aid and for another country and at a different time and age, but now meant for application to an independent people with their own set of customs, culture and laws clearly at variance with any situation which were ever in the contemplation of the British Parliament which enacted them. He argued forcefully that the court must avoid any interpretation of section 18 (ibid) which would lead to an absurdity or injustice, adding that in the instant case, to hold that the second marriage contracted between Chief Okotie-Eboh and the 1st respondent revoked the

will which he had made in 1947 made with the fullest sense of responsibility, would create absurdity and injustice. He maintained that the words of a statute may be ambiguous, but that the provisions ought not to be interpreted in isolation of other statutory provisions and the factual situation of each case. He therefore further submitted that two other statutes, among other, particularly demand consideration along with Section 18 of the Wills Act, 1837 (*ibid*), to wit:

(1) The Interpretation Act, Cap. 89 Laws of the Federation of Nigeria, 1960 and

(2) The Marriage Act, Cap 115, Laws of the Federation of Nigeria 1958.

Secondly the learned Senior Advocate contended that it was the purpose of avoiding such absurdity as he reared its head in this matter, that the Nigerian Legislature enacted provisions of the Interpretation Act, to take care of local peculiarities etc. therefore further submitted that it will be absurd to suggest that Chief Festus Sarin Okotie-Eboh's second marriage under the Marriage Act in 1961 in Lagos with same woman he had previously contracted a subsisting customary marriage was revoked in 1942 at Sapele revoked his Will of 1947 by the operation of section 18 of the Wills Act, 1837. He urged us to allow the appeal. Learned counsel for the respondent Mrs. Obe, in her Brief as well as her oral elaboration submitted *inter alia*, that both the 1942 customary marriage and the 1961 marriage under the Marriage Act, Cap 115 between the deceased and the respondent are valid. She however, contended that what is important for the purpose of this appeal is that the second marriage was celebrated after the 1947 will was made, revoked that will in accordance with provisions of section 18 of the Wills Act (*ibid*). She argued further that it was the clear intention of the law maker (the British Parliament) was that a person went through valid ceremony of marriage, any previous will he or she made, would remain automatically revoked. She further contended that the legislature in Nigeria opted to provide that a statute, such as the Will Act would as a statute of general application, be in force in this country, it must be in mind that prevailing Nigerian custom and culture with regard to the "marriage" situation, whereby two persons can validly marry under both customary or Islamic as well as the Marriage Act.

Mr. Odebala, learned counsel for the 3rd respondent pointed out how the provisions of section 18 of the Wills Acts (ibid) are clear and unambiguous, adding that the provisions apply to only Wills made by any of the parties to monogamous marriage. He submitted that the customary law marriage of 1942 contracted between the late Chief Festus Samuel Okotie-Eboh and the 1st respondent was essentially polygamous but that the same became monogamous once they under went a second form of marriage in 1961 under the Act in 1961 automatically revoked the 1947 Will Chief Okotie-Eboh made pursuant to the plain provisions of section 18 of the Will Act, 1837 of England - a statute of general application forming part of the received English laws. See: *Idelhen v. Idelhen* (1991) 6 NWLR (Pt 198) 382 at p. 416.

I will approach this all - important case by first of all pointing out that "Marriage" as defined in section 18 of the Wills Act (ibid) applies to only people with English domicile. I am strengthened in this view in that our Marriage Ordinance (now Act) recognises in clear and unambiguous terms the validity of customary law marriage. Thus, as is demonstrably hereunder shown, the English law is exemplified in section 18 of the Wills Act, 1837, has not been imported and applied in Nigeria lock, stock and barrel blindly and with unquestionably fervour and adherence. See section 2(1), (2) and (3) of the Law (Miscellaneous Provisions) Law, Cap. 65 of Lagos State of 1973. I need only reproduce sub-sections (1) and (3) of section 2 of the above Law to exemplify what I am saying as follows:

"(1) Subject to provisions of this section and except in so far as to her provision is made by any Federal or State enactment, the common law of England and the doctrines equity, together with the statutes of general application that were in force in England on the first day of January, 1900 shall be in force in Lagos".

(3) For the purpose of facilitating the application of the said Imperial Laws they shall be read with such formal verbal alterations not affecting the substance as to names, localities, courts, offices, persons, moneys penalties and otherwise as may be necessary to render the same applicable to the circumstances."

It may be argued that the above Law being a 1973 enactment is not applicable to the case in hand but when it is known that the Interpretation Act, Cap. 89 of 1958 whose provisions apply to the entire Federation of Nigeria and that it has provisions which are in *parimateria* to the above Law, such an argument cannot be carried too far. See section 45 (1), (2) and (3) of the Interpretation Act, Cap. 89, Laws of the Federation of Nigeria and Lagos State, 1958. What it amounts to is that the customary Law marriage of 1942 between late Chief Festus Okote-Eboh and the 1st respondent was not invalidated and being valid, the Will duly executed by him on 21st August, 1942 before his marriage in 1961 (a period after 1958 when the Interpretation Act was in force) to the same woman of 1942 i.e. 1st respondent under the Marriage Act, is not thereby revoked. See *Warter v. Warter* (1888-1890) 13-15P.D. 35. Indeed, the Wills Act 1837 contemplates one marriage. See the provisions of section 11 and 47 of the Marriage Act which stipulate that-

"11(1) The Registrar, at anytime after the expiration of twenty-one days and before the expiration of three months from the date of the notice, upon payment of the prescribed fee, shall thereupon issue his certificate as in Form C in the First Schedule. Provided always that he shall not issue such certificate until he has been satisfied by affidavit -

(d) that neither of the parties to the Intended marriage is married by native law and custom to any person other than the person with whom such marriage is proposed to be contracted."

"47 Whoever contracts a marriage under the provisions of this Act, or modification or re-enactment thereof, being at the time married in accordance with any customary law to any person other than the person with whom such marriage contracted, shall be liable to imprisonment for five years"

Although the latter provision in section 47 (*ibid*) is more of a window-dresser that it is observed more in breach than in conformity and obedience in Niger purport is clear and unambiguous. That being so, that part of the judgment of the Court of Appeal upsetting the decision of the trial court, per Achike, J.C.A. effect that -

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"Applying the unambiguous provisions of section 18 of the Wills Act, 1837, to the circumstances of this case I am satisfied that the Will made in August, 1947, Exhibit P1, was revoked by the 1961 marriage between the late Chief Festus Okotir-Eboh and the 2nd respondent (now 1st respondent)."

is probably wrong and unsustainable. The will was not, with utmost due respect, revoked in a situation which, one may say, was the re-affirmation of an existing and recognised form of union between a man and his wife in the nature of a monogamous but under no guise polygamous or potentially polygamous marriage as by law sanctioned.

My answer to the lone issue is rendered in the negative.

For these and the fuller reasons set out in the judgment of my learned the Chief Justice of Nigeria I, too, allow this appeal. I abide by the consequential orders made therein inclusive of those regarding costs.

ADIO, J.S.C. I have had the opportunity of reading, in draft, the judgment just read by my learned brother, Uwais, C.J.N. and I agree with his reasoning and conclusion, which I adopt at mine. The appeal succeeds and I allow it, I abide by the consequential orders.

IGUH, J.S.C. I have had the privilege dreading in advance the judgment just delivered by the Honourable Chief Justice of Nigeria and I am in complete agreement with the reasoning and conclusions therein reached.

The facts of this case are fully set out in the lead judgment and no useful purpose will be served by my repeating them au over again. It suffices to the state that the sole issue for determination in this appeal is whether or not and Testament of the late Chief Festus Samuel Okotie-Eboh, duly executed by him on the 21st August, 1947 was revoked by operation of law by his subsequent marriage under the Marriage Act in 1961 to the 1st defendant/respondent, Mrs. Victoria Okotie-Eboh, to whom he was lawfully married under customary law since 1942 up to the date he executed the will and until his death in 1966.

The Court of Appeal, Lagos Division, had on the 18th day of December, 1991 decided that applying the provisions of Section 18 of the Wills Act, 1837, the will in

issue executed on the 21st April, 1947, Exhibit P1 was revoked by the subsequent marriage between the said Chief Festus Samud Okote-Eboh and the defendant/respondent in 1961.

Section 18 of the Wills Act, 1837 of England provides as follows:

"18. Every Will made by a man or woman shall be revoked by his or her marriage except a will made in exercise of power of appointment, when the real or personal estate thereby appointed would not in default of such appointment, pass to his or her heir, customary heir, executor or administrator or the person entitled as his or her next of kin under any written law relating to the distribution of the estate of persons dying intestate

(Italics supplied for emphasis)

It is the submission of Mr. Kehinde Sofola, learned Senior Advocate for appellant, that the provisions of the said section 18 of the Wills Act, 1837 are applied in so far and only to the extent that our peculiar local circumstances require. He explained that this is because, this court is now faced with the peculiar situation of interpreting a statute made, not only in and for another country, and at a different time and age, but now meant for application to a people with their own customs, culture and laws clearly at variance with any situations which were the contemplation of the British Parliament which enacted the Act. He contended that the court must avoid any interpretation of section 18 of the Wills Act that would lead to an absurdity or to injustice. He submitted that to hold that the marriage ceremony between Chief Okote-Eboh and the 1st respondent respondent, which he had previously made with the fullest sense of responsibility, create an absurdity and injustice. He pointed out that the words of a statute are unambiguous, but that the provisions will nevertheless not be interpreted in isolation of other relevant statutory provisions and the factual situation of the case. He submitted that in the present case, two other statutory provisions, consideration and integrated interpretation with the provision of section 18 of the Wills Act, 1837. These are:

(1) Interpretation Act, Cap. 189, Laws of the Federation of Nigeria, 1958.

It is pertinent to know that after evaluation of the estate of a deceased person by an expert valuer and after determining the debt against the estate where is applicable or where any was hanging, and after settling all the creditors, payment of all expenses which include valuation, expenses, court expenses, legal counsel expenses etc the property should be appropriately allotted to a heir as provide under Qur'an chapter 4 verses 10-11.

Therefore in respect of this practical research since the deceased children and one widow they are the only heirs and beneficiaries of his estate and accordingly the distribution shall be conducted where the widow will be entitled to 1/8 while the children particular male children will be entitled to double share as against the female children based on the cited Qur'anic injunction since we are certain that the deceased left not any of his parent

Distribution

The widow was entitled to 1/8 for the total value of the estate (Bannu International Hotel) in respect of N30, 000,000.00 i.e. she is entitled of N6, 472,500.00 and in respect of immovable property which total of N6, 316, 500.00, she entitle of N789,562.5.

Therefore the remaining balance should be shared amongst the children in ratio 2:1 that a male child should have a double share of a female child.

It should also be noted however that the distribution shall be based on allocations of rooms where each room has an appropriate value that each child should be given a particular room at the appropriate value.

E. BANKRUPTCY

1. Bankruptcy is a collective procedure for the recovery of debts by creditors. It is a federally authorized procedure by which a debtor an individual, corporation, or municipality is relieved of total liability for its debts by making court-approved arrangements for their partial repayment. Bankruptcy allows individuals, couples, and businesses that cannot meet their financial obligations to be excused from repaying some or all of their debt. Bankruptcy has been in existence since ancient times. It also protects individuals who have become overburdened by their debts. In Nigeria, the rules and procedures for filing bankruptcy are governed by federal statutes and common law principles.

There are three main objectives of bankruptcy law, namely:

- a. To provide a fair and equal means of distributing the debtors property among creditors of the same rank.
- b. To provide a machinery whereby a debtor is freed from his debts, thereby affording him the chance of making a fresh start.
- c. To enquire into the circumstances responsible for the insolvency and thereby provide information which may deter others from accumulating debts which they are unable to liquidate. Bankruptcy proceedings are specialized specie of litigation and entail a mastery of the applicable laws and rules for effective usage.

2. Creditor

A creditor is someone (or some entity) that has a right to payment or other remedy against/from the debtor who is the subject of the bankruptcy filing. Creditors in bankruptcy have a unique set of issues and problems.

3. Debtor

One who owes a debt or the performance of an obligation to another, who is called the creditor; one who may be compelled to pay a claim or demand; anyone liable on a claim, whether due or to become due. In Bankruptcy law, a person who files a voluntary petition or person against whom an involuntary petition is filed. A person or municipality concerning with a bankruptcy case has been commenced. A person or entity that owes an amount of money or favor to another, in bankruptcy, the party whose affairs are the subject of the proceedings is called the debtor.

4. Duty to Investigate

When a bankruptcy order has been made by the court the official receiver has a statutory duty to investigate the conduct and affairs of the bankrupt. Where the official receiver thinks that an investigation is not necessary his/her statutory duty does not apply.

5. Report to Court

In fulfilling his/her duty to investigate the affairs of the bankrupt the official receiver may make a report to the court if he/she thinks fit.

6. Title of Proceedings - Bankruptcy Description

The petition must contain sufficient information about the debtor to enable him/her to be correctly identified. The petition shall include the following:

- his/her name, place of residence and occupation (if any);
- any other name used at any time and where an order is made against a person who has undergone gender reassignment (transsexual);
- the name or names in which he/she carries on business, if other than his/her true name, and whether, in the case of any business of a specified nature, he/she carries it on alone or with others;
- the nature of the business, and the address or addresses at which he/she carries it on;
- any name or names, other than his/her true name, in which he/she has carried on business at or after the time when the debt was incurred, and whether he/she has done so alone or with others, and
- any address or addresses at which he/she has resided or carried on business at or after that time, and the nature of that business.

The above details are referred to as the bill title of the proceedings.

7. Person at Risk of Violence - Court Order (Amended November 2014)

Where the court accepts that a bankrupt, or a family member, may be at risk from violence it may order one or more of the following, that

1. details of the bankrupt's address be removed from any part of the court file which is open for public inspection and be kept on a separate file not open to inspection;
2. the bankrupt's current address be removed from the bankruptcy order;
3. the full title of the proceedings be amended by the removal of the bankrupt's current address from the description;
4. details of the bankrupt's current address be omitted from any notice to be gazetted or otherwise advertised;
5. the bankrupt's current address is not included on the individual insolvency register or bankruptcy restrictions register and/or

6. details of the bankrupt's current address kept on the individual insolvency register or bankruptcy restrictions register be removed.

8. Trustees in Bankruptcy

Official name

The official name of a trustee in bankruptcy shall be "the trustee of the property of a bankrupt" (inserting the name of the bankrupt), and by that name the trustee may hold property of every description, make contracts, sue and be sued, enter into any engagements binding on himself and his successors in office, and do all other acts necessary or expedient to be done in the execution of his office.

Appointment

- i) The creditors may, if they think fit appoint more persons than one to the office of trustee and, when more persons than one are appointed shall declare whether any act required or authorised to be done by the trustee is to be done by all or any one or more of such persons, but all such persons are in this Act included under the term trustee and shall be joint tenants of the property of the bankrupt;
- ii) The creditors may also appoint persons to act as trustees in succession in the event of one or more of the persons first named declining to accept the office of trustee or failing to give security, or of the appointment of any such person being approved by the court;
- iii) If a vacancy occurs in the office of a trustee the creditors in general meeting may appoint a person to fill the vacancy and thereupon the same proceedings shall be taken as in the case of a first appointment;
- iv) The Official Receiver shall, on the requisition of any creditor, summon a meeting for the purpose of filling any such vacancy;
- v) If the creditors do not within three weeks after the occurrence of a vacancy appoint a person to fill the vacancy, the Official Receiver shall report the matter to the court, and the court may appoint a trustee;
- vi) During any vacancy in the office of trustee the Official Receiver shall act as trustee.

9. Control over Trustee

- a. Subject to the provisions of this Act, the trustee shall, in the administration of the property of the bankrupt and in the distribution thereof amongst his creditors, have regard to any directions that may be given by resolution of three creditors at any general meeting or by the committee of inspection, and any directions so given by the creditors at any general meeting shall, in case of conflict, be deemed to override any directions given by the committee of inspection;
- b. The trustees may from time to time summon general meetings of the creditors for the purpose of ascertaining their wishes, and it shall be his duty to summon meetings at such times as the creditors, by resolution, either at the meeting appointing the trustee or otherwise may direct, and it shall be lawful for any creditor, with the concurrence of one-fourth in value of the creditors (including himself), at any time to request the trustee or Official Receiver to call a meeting of the creditors, and the trustee or Official Receiver shall call such meeting accordingly within fourteen days;
- c. Provided that the person at whose instance the meeting is summoned shall, if so required, deposit with the trustee or the Official Receiver, as the case may be, a sum sufficient to pay the costs of summoning the meeting, such sum to be repaid to him out of the estate if the court so directs;
- d. The trustee may apply to the court in manner prescribed for directions in relation to any particular matter arising under the bankruptcy;
- e. Subject to the provisions of this Act the trustee shall use his discretion in the management of the estate and its distribution among the creditors;
- f. If the bankrupt or any of the creditors or any other person is aggrieved by any act or decision of the trustee, he may apply to the court, and the court may confirm, reverse or modify the act or decision complained of, and make such order as it thinks just.

The court may also direct an investigation to be made of the books and vouchers of the trustee.

10. Receipts, Payments, Accounts and Audit

The trustee or Official Receiver shall, whenever required by any creditor so to do, furnish and transmit to him by post a list of the creditors showing the amount of the debt due to each creditor, and shall be entitled to charge for such list the sum of twenty-five kobo per folio of seventy-two words.

It shall be lawful for any creditor, with the concurrence of one-fourth of the creditors (including himself), at any time to call upon the trustee or Official Receiver to furnish and transmit to the creditors a statement of the accounts up to the date of such notice, and the trustee shall upon receipt of such notice furnish and transmit such statement of the accounts;

Provided that the person at whose instance the accounts are furnished shall, so required, deposit with the trustee or Official Receiver, as the case may be, a sum sufficient to pay the costs of furnishing and transmitting the accounts, which sum shall be re-paid to him out of the estate if the court so directs.

The court may if it so desires examine the trustee and after hearing the explanation, if any, of the trustee, make such order as it may think just for compelling the trustee to make good any loss to the estate which after such audit examination, may appear to the court to have been occasioned by any misfeasance, neglect or improper conduct or omission of the trustee.

11. Vacation of Office by Trustee

When the trustee has realised all the property of the bankrupt or so much thereof as can, in his opinion, be realised without needlessly protracting trusteeship, and distributed a final dividend, if any, or has ceased to act by reason of a composition having been approved, or has resigned or has been removed from office, he shall apply to the court or his release, and if all the requirements of the court with respect to accounts and with respect to any order of the court against the trustee have been fulfilled, the court may make an order for release accordingly.

i) Where the release of a trustee is withheld the court may, on the application of any creditor or person interested, make such order as it thinks just, charging the trustee with the consequences of any act or default he may have done in contravention of his duty;

- ii) An order of the court releasing the trustee shall discharge him from all liability in respect of any act done or default made by him in the administration of the affairs of the bankrupt, or otherwise in relation to his conduct as trustee, but any such order may be revoked on proof that it was obtained by fraud or by suppression or concealment of any material fact;
- iii) The provisions of subsections (1), (2) and (3) of this section shall apply to the Official Receiver when he is or is acting as trustee, and when the Official Receiver has been released under this section or any previous similar enactment he shall continue to act as trustee for any subsequent purposes of the administration of the debtor's estate but no liability shall attach to him personally by reason of his so continuing in respect of any act done, default made or liability incurred before his release.

The Creditors may by ordinary resolution, at a meeting specially called for that purpose of which seven days notice has been given, remove a trustee, other than the Official Receiver, appointed by them and may at the same or any subsequent meeting appoint another person to fill the vacancy as provided in case of a vacancy in the office of trustee.

If the court is of opinion -

- a. That a trustee appointed by the creditors is guilty of misconduct or fails to perform his duties under this Act; or
- b. That his trusteeship is being needlessly protracted without any probable advantage to the creditors; or
- c. That he is by reason of mental or physical disability or absence incapable of performing his duties; or
- d. That his connection with or relation to the bankrupt or his estate or any particular creditor might make it difficult for him to act with impartiality in the interest of the creditors generally; or
- e. that the interests of the creditors require it, the court may remove him from his office and appoint another person in his place.

12. Supplemental Provisions

Disobedience to order of court

Where default is made by a trustee, debtor or other person in obeying any order or direction made or given by the court under this Act, the court may make an immediate order for the committal of such trustee, debtor or other person for contempt of court:

Provided that the power given by this section shall be deemed to be in addition to and not in substitution for any other right, remedy or liability in respect of such default.

13. Application of Act

A receiving order shall not be made against any corporation or against any association or company registered under the Companies and Allied Matters Act.

Any creditor of a deceased debtor whose debt would have been sufficient to support a bankruptcy petition against the debtor, had he been alive, may present to the court a petition in the prescribed form praying for an order for the administration in bankruptcy of the estate of the deceased debtor, according to this Act.

General rules for carrying into effect the provisions of this section may be made in the same manner and to the like effect and extent as in bankruptcy.

14. General Regulations

The Minister may, with the approval of the National Council of Ministers make regulations not inconsistent with the Act and any general rules made thereunder for the carrying into effect the objects of this Act.

15. Fees and Remuneration

The President of the court may, with the approval of the National Council of Ministers, prescribe a scale of fees and percentages to be charged for or in respect of proceedings under this Act.

All fees and commissions received by or payable to the Official Receiver or the appointment of a trustee other than himself or for acting as trustee, and any remuneration received by the Official Receiver as an interim receiver or otherwise shall be paid by such officer forthwith into the Consolidated Revenue Fund of the Federation.

16. Evidence

A minute of proceedings at a meeting of creditors under this Act, signed by a person describing himself as or appearing to be chairman of the meeting, shall be received in evidence without further proof.

Until the contrary is proved every meeting of creditors in respect of the proceedings whereof a minute has been so signed shall be deemed to have been duly convened and held and all resolutions passed or proceedings had the right to have been duly passed or had.

Any petition or copy of a petition in bankruptcy, any order or certificate or copy of an order or certificate made by the court, any instrument or copy of an instrument, affidavit or document made or used in the course of any bankruptcy proceedings or other proceedings had under this Act shall, if it appears to be sealed with the seal of the court or purports to be signed by the Registrar, or is certified as a true copy by the Registrar, be receivable in evidence in all legal proceedings whatsoever.

F. INSOLVENCY

1. Insolvency connotes the inability to pay one's debts as they fall due. The concept generically applies both to corporate failure of business and individual bankruptcy, but the term Insolvency is usually used to refer to business or company insolvency. Again, insolvency means incapacity to pay debts upon the date when they become due in the ordinary course of business; the condition of an individual whose property and assets are inadequate to discharge the persons debts, It is the condition of having more debts (liabilities) than total assets which might be available to pay them, even if the assets were mortgaged or sold. In other words, it is a determination by a bankruptcy court that a person or business cannot raise the funds to pay all of his/her debts.

The purpose of this Law is to promote the honouring of the obligations of a debtor in financial difficulties and, where possible, the renewal of solvency, applying the principles and lawful solutions specified in the Law.

2. Section 2. Scope of Application of this Law

1. This Law shall apply to a legal person (except the entirety of property of an estate) or to a natural person.
 2. (2) In respect of the State, self-government or other legal person governed by public law the insolvency proceedings and legal protection proceedings specified in this Law shall not be applied.
 3. A separate law shall regulate the insolvency proceedings of credit institutions.
 4. The provisions of this Law shall be applicable to the insolvency proceedings of those financial and capital market participants, the supervision of whose activities in accordance with the requirements of regulatory enactments is performed by the Financial and Capital Market Commission, insofar as it is not prescribed otherwise by the special legal norms regulating the activities of the financial and capital market participants.
 5. The provisions of this Law shall be applicable to the insolvency proceedings of the subject of a financial security contract, observing the exceptions and additional provisions referred to in the Financial Security Law.
- Insolvency is usually classified into two; namely, cash flow insolvency and balance sheet insolvency.
- ### 3. Cash Flow Insolvency
- (inability to meet up with commercial commitments/obligations arising from trade with third parties or secured lending even though the company may be asset rich) and the wider concept of;
- ### 4. Balance Sheet

Insolvency arises where the liabilities of the company exceeds the assets of the company. It seems clear that an improper case of winding up or a proper case for business rescue and turn around is more likely to occur for a company that is cash flow insolvent. The main problem in those circumstances would not be the long term viability of the business but a temporary delay in the cash flow cycle, which can be corrected through various measures and techniques. Sometimes insolvency and bankruptcy are used synonymously. However, the very notion of "insolvency" is not used uniformly at a global level in that some legal systems use bankruptcy

5. Section 3. Legal Protection Proceedings

1. Legal protection proceedings are an aggregate of measures of a legal nature, whose purpose is to renew the ability of a debtor to settle their debt obligations, if a debtor has come into financial difficulties or expects to do so.
2. Legal protection proceedings shall commence from the day when a matter of legal protection proceedings are initiated in court and shall take place until the day when the court takes a decision regarding the termination of the legal protection proceedings.

6. Insolvency Proceedings of a Legal Person

1. The insolvency proceedings of a legal person are an aggregate of measures of a legal nature, within the scope of which the claims of creditors are settled from the property of a debtor, in order to promote the honouring of the debtor's obligations.
2. The insolvency proceedings of a legal person shall be commenced from the day when the court has proclaimed insolvency proceedings by the adjudication and shall take place until the day when the court takes a decision regarding the termination of the insolvency proceedings.

The insolvency proceedings of a natural person are an aggregate of measures of a legal nature whose aim is to satisfy the claims of creditors as much as possible from the property of a debtor and provide the opportunity for a debtor whose property and income is insufficient to cover the entire obligations to be released from the obligations which have not been honoured and to restore solvency.

The insolvency proceedings of a legal person shall be commenced from the day when the court has proclaimed insolvency proceedings by the adjudication and take shall place until the day when the court takes a decision regarding the termination of the insolvency proceedings.

7. Principles of Legal Protection Proceedings, Insolvency Proceedings of a Legal Person and Insolvency Proceedings of a Natural Person

The general principles of legal protection proceedings, the insolvency proceedings of a legal person and insolvency proceedings of a natural person (hereinafter in this Section - proceedings) shall be applied as follows:

1. principle of the preservation of rights - the rights of creditors acquired prior to proceedings shall be observed during the proceedings. The restriction of rights of creditors specified within the scope of the proceedings may not be greater than is necessary for achieving the objective of the respective proceedings.
2. principle of creditor equality - creditors shall be given equal opportunities to participate in proceedings and receive satisfaction of their claims in accordance with the obligations which they have established with the debtor prior to the commencement of proceedings.
3. the principle of not allowing arbitrariness - a creditor and debtor may not perform individual activities which cause harm to the interests of the creditors in general;
4. principle of honouring of obligations - measures which allow the obligations undertaken by a debtor to be honoured in a greater amount shall be applicable within the scope of proceedings;
5. principle of effectiveness of proceedings - such measures which allow the objective of the proceedings to be achieved in a most complete manner with the least resources shall be applicable within the scope of proceedings;
6. principle of quick turnover-the task of the proceedings is to maintain a commercially lawful quick turnover. The sale of the property of a debtor shall be performed in order to ensure the return thereof to commercially lawful circulation as quickly as possible;
7. principle of transparency-in order to ensure credibility, information regarding proceedings must be accessible to all persons involved in the proceedings, thereby promoting the observation of the interests of these persons and the achievement of the objectives of the proceedings. An exception is information the unrestricted disclosure of which might harm the lawful interests of a debtor or a creditor; .
8. principle of good faith - persons involved in proceedings shall use their rights and fulfil their duties in good faith. A debtor and creditor may not use the proceedings in order to make a living unfairly.

8. Secured Creditor

1. A secured creditor is a creditor whose right to claim is ensured by commercial pledge, or mortgage registered in the Land Register or Ship Register;
2. A secured creditor in the amount of the parts of a claim which are not secured is considered to be a non-secured creditor, A secured creditor is entitled during any stage of the proceedings to decline from the security of the right to claim in full or partly, by performing the relevant amendments in the public registers.

9. Non-secured Creditor

A non-secured creditor is a creditor whose right to claim is not secured with the means of the security referred to in Section 7.

10. Insolvency Register

(1) In order to ensure the public awareness of legal protection proceedings, the insolvency proceedings of a legal person and the insolvency proceedings of a natural person, the responsible authority shall organise an Insolvency Register, in which the information specified in this Law shall be included. The Insolvency Register is accessible to everyone free of charge, and the entries therein shall be publicly reliable.

(2) Information regarding the administrator of insolvency proceedings, the course of the legal protection proceedings, the insolvency proceedings of a legal person and the insolvency proceedings of a natural person shall be entered into the Insolvency Register.

11. Termination of the Duties of an Administrator

The duties of an administrator shall terminate:

- 1) if the administrator is removed from office.
- 2) if the legal protection proceedings are being terminated, except the case referred to in Section 59, Paragraph three of this Law;
- 3) if the insolvency proceedings of a legal person are being terminated, except the case referred to in Section 35, Paragraph five of this Law.
- 4) if the insolvency proceedings of a natural person are being terminated or in the event of the decease of the administrator.

12. Liability of an Administrator

An administrator shall be liable for losses caused to the State, the debtor, creditors or other persons due to the fault of the administrator or an authorised representative thereof. An administrator shall not be liable for the actions of the debtor and previous administrator and transactions concluded prior to his or her commencement of fulfilling the duties of an administrator.

13. Time Period for the Implementation of Legal Protection Proceedings

The time period for the implementation of legal protection proceedings shall be determined as not exceeding two years from the day of the coming into effect of the court adjudication regarding the implementation of the legal protection proceedings.

The time period referred to in Paragraph one of this Section may be extended by additional two years.

14. Restrictions and Duties of a Debtor's Action

A debtor is prohibited from the following during the period of implementation of legal protection proceedings:

- 1) entering into any transactions or performing activities which may worsen the financial situation thereof or harm the overall interests of the creditors;
- 2) issuing loans (credits), except cases when the issuance of loans (credits) is the basic activity of the debtor and this has been entered in the plan of measures of the legal protection proceedings;
- 3) giving guarantees, giving presents or donating, awarding bonuses to members of the board and council of the debtor or other type of additional financial remuneration.

15. Kerr-McGee vs Tronox Bankruptcy Fraudulent Conveyance Case Results in Largest Environmental

- Between \$1.1 billion and \$3.1 billion for the Multistate Environmental Response Trust created in the bankruptcy to clean up more than two dozen contaminated sites around the country, including the Kerr-McGee Superfund Site in Columbus, Miss.

- Between \$1.1 billion and \$3.1 billion to be paid to the Nevada Environmental Response Trust created in the bankruptcy to clean up the perchlorate and other contamination resulting from operations at an industrial park near Lake Mead in Nev.

16. Cases on the Law of Bankruptcy, including *The Law of Fraudulent*

The first part contains forty pages of none too enlightening text, the second part offers the single case of *American Surety Co. v. Marotta* (287 U. S. 513) and a foot note, and the third part yields for its first three cases *Benedict v. Rahner* (268 U. S. 353), *Dean v. Davis* (242 U. S. 438), and *Moore v. Bay* (284 U. S. 4). Even the ablest teachers are likely to find difficulty in making anything out of these cases in such a setting. (Professor Billig foresees this objection and suggests that some teachers may wish to postpone consideration of part (c) until a later chapter is reached.) Similar criticism could be made of the long subsection on preferences (*Arabic numeral 2* of the same chapter). But to criticize the organization of this edition is to criticize that of the earlier editions, and in the case of a book so well known such an undertaking could be hardly other than superfluous.

In his redecoration of the earlier structure Professor Billig has done a workmanlike job. More than half of the opinions that he reprints at length are from cases decided since the publication date of the last edition. These cases are well selected and the opinions are presented without too much editing. They are supplemented by some text material and by annotation that is luxuriant in its reference to law review sources and other cases. The editor pays tribute to his wife for excellent work in the chapter on Discharge